

LAW AND MOTION TENTATIVE RULINGS

DATE: JUNE 26, 2026 TIME: 8:30 A.M.

TENTATIVE RULINGS ARE NOT POSTED IN UNLAWFUL DETAINER CASES

Notice to prevailing parties: Local Rule 2.10.01 requires you to submit a proposed formal order incorporating, verbatim, the language of any tentative ruling – or attaching and incorporating the tentative by reference - or an order consistent with the announced ruling of the Court, in accordance with California Rule of Court 3.1312. **Such proposed order is required even if the prevailing party submitted a proposed order prior to the hearing with two exceptions: (1) in unopposed matters where the moving party has provided a detailed proposed order or JCC form of order, or (2) where the tentative is simply to “grant”.** Failure to comply with Local Rule 2.10.01 may result in the imposition of sanctions following an order to show cause hearing, if a proposed order is not timely filed.

No. 25CV03675

WOOLEN v. THE DAVEY TREE EXPERT COMPANY

DEFENDANTS’ MOTION TO STRIKE

The motion to strike is moot. Plaintiff filed a first amended complaint on June 12, 2026.

No. 24CV01784

LY v. SANTA CRUZ SEASIDE COMPANY

PLAINTIFF’S MOTION FOR LEAVE TO FILE SECOND AMENDED COMPLAINT

Plaintiff’s motion is denied.

I. BACKGROUND

Plaintiff Van Ly sued defendant Santa Cruz Seaside Company for negligence/premises liability, nuisance, intentional infliction of emotional distress (“IIED”), breach of contract, and fraudulent concealment after staying at the 18-room hotel owned by defendant (Sea & Sand Inn, 201 W. Cliff Drive, Santa Cruz) in October 2023 which she says was infested with bed bugs.

On October 31, 2024, this Court sustained defendant’s demurrer with leave to amend as to plaintiff’s causes of action for IIED, breach of contract, and fraudulent concealment reasoning that there were no allegations describing the nature and extent of plaintiff’s suffering or how defendant’s conduct exceeded all bounds of that usually tolerated in society, no facts showing

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plaintiff had any contract with the hotel, and no particularized facts supporting fraudulent concealment of the bed bugs. On April 21, 2025, this Court ruled that plaintiff's first amended complaint was still deficient and failed to support any of those claims, sustaining the demurrer without leave to amend and striking plaintiff's punitive damages allegations.

Following plaintiff's motion to compel pest control records from defendant, the Court ordered the unredacted records produced. Plaintiff now contends that those records support renewing her claims for IIED, fraudulent concealment, and punitive damages.

II. LEGAL STANDARDS

Leave of court is required to amend any pleading except as provided by Code of Civil Procedure sections 472 and 474. A judge may, in furtherance of justice and on proper terms, allow the amendment of any pleading at any time, even after commencement of trial. (Code Civ. Proc., §§ 473, subd. (a), 576; *Hong Sang Market, Inc. v. Peng* (2018) 20 Cal.App.5th 474, 488 [leave to amend any pleading is entrusted to judge's sound discretion].) Judges should generally be liberal in permitting amendments to pleadings. (*Ibid.*) Judges must consider factors of party conduct, potential prejudice to parties, timeliness of amendment, or unwarranted delay in determining if an amendment is permitted. (See *Duchrow v. Forrest* (2013) 215 Cal.App.4th 1359, 1377; *Emerald Bay Community Assn. v. Golden Eagle Ins. Corp.* (2005) 130 Cal.App.4th 1078, 1097-98 [even if proposed amendment in proper form, unwarranted delay in bringing it may be a valid reason for denial].)

III. DISCUSSION

A. IIED

To state a claim for intentional infliction of emotional distress ("IIED"), a plaintiff must allege: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050-51.) "A defendant's conduct is 'outrageous' when it is so 'extreme as to exceed all bounds of that usually tolerated in a civilized community.' And the defendant's conduct must be 'intended to inflict injury or engaged in with the realization that injury will result.'" (*Ibid.*) The complaint must plead specific facts that establish severe emotional distress resulting from the defendant's conduct. (*Michaelian v. State Comp. Ins. Fund* (1996) 50 Cal.App.4th 1093, 1114.)

The distress must be so severe that no reasonable person could be expected to endure it. (*Bogard v. Employers Casualty Co.* (1985) 164 Cal.App.3d 602, 617.) Plaintiffs must state facts

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which describe or indicate the nature and extent of their mental suffering. (*Fletcher v. Western National Life Ins. Co.* (1970) 10 Cal.App.3d 376, 397.)

Based on the pest control records, plaintiff now alleges beginning no later than March 15, 2022, defendant had actual knowledge, through its pest control contractor, that bed bugs were present in multiple rooms at the hotel. The pest control records reflect that on or about February 28, 2023, defendant was billed for bed bug inspection services for rooms 202, 204 and 205, and was billed for bed bug treatments performed in rooms 201, 202, 203, 204, and 205 from February 28, 2023 through March 1, 2023. The pest control records show that room 103 – plaintiff’s room on October 13, 2023 -- was the subject of a bed bug treatment on July 7, 2023, and a bed bug inspection on July 10, 2023. Plaintiff alleges this establishes defendant’s actual notice of a hotel-wide infestation as well as bed bugs in room 103. Notwithstanding this actual knowledge, defendant allegedly continued to hold out the hotel as fit for guest occupancy and continued renting rooms to paying guests without disclosing the known bed bug history, prior treatments, prior inspections, or the ongoing bed bug problem at the hotel. (Demirdjian Declaration, Exhibit A, proposed Second Amended Complaint, ¶¶ 73-76.)

On or about October 13, 2023, the hotel rented room 103 to plaintiff without warning her that it was treated for bed bugs in July 2023. Plaintiff thereafter alleges typical and conclusory allegations related to punitive damages (ratification, failure to inform, intentional concealment, choosing profit over guest safety, ignored complaints by plaintiff, failure to abate the condition and protect plaintiff from harm). Plaintiff alleges that had defendant disclosed that room 103 had been treated for bed bugs on July 7, 2023 and inspected on July 10, 2023, she would not have rented the room. Plaintiff also alleges that multiple additional rooms “had recently required bed bug inspections and treatments” but fails to allege those dates or rooms. (Demirdjian Decl., Ex. A, ¶¶ 77-89.) Based on her proposed second amended complaint, the last inspections and treatments were in July 2023, three months prior to plaintiff’s visit.

Defendant argues that the pest control records actually establish that defendant was conducting proactive inspections and treatment for bed bugs, and that there is no evidence of bed bugs at the time of plaintiff’s stay.

On reply, plaintiff contends her IIED allegations are sufficient and cures the previous identified defects. However, the Court agrees that the new allegations based on the pest control records do not support a claim for IIED. As the Court indicated in its previous order sustaining defendant’s demurrer to the prior IIED claim without leave to amend, these facts could support negligent infliction of emotional distress but they fail to describe behavior that exceeds all bounds of that usually tolerated in society, as is the standard for IIED. Even where alarming or upsetting facts justify liability on other tort theories, intentional infliction of emotional distress will not necessarily lie. (See *Mack v. Soung* (2000) 80 Cal.App.4th 966, 975-976 [elder abuse];

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Hughes v. Pair (2009) 46 Cal.4th 1035, 1050-1051 [attempt to extort sexual favors for trust fund payments]; *Delfino v. Agilent Echnologies, Inc.* (2006) 145 Cal.App.4th 790, 809 [anonymous emails graphically threatening physical harm].) The presence of bed bugs when renting hotel rooms - even when the infestation is severe - is not beyond what a reasonable person could expect to endure in a civilized society. And here, there is no evidence that defendant was aware of any bed bug infestation at the relevant time.

For these reasons, the Court denies plaintiff's motion as to any newly alleged IIED claim.

B. *Fraudulent concealment*

“[T]he elements of an action for fraud and deceit based on concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” (*Marketing West, Inc. v. Sanyo Fisher (USA) Corp.* (1992) 6 Cal.App.4th 603, 612-613.)

Concealment is a species of fraud and must be pleaded with specificity. (*Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC* (2008) 162 Cal.App.4th 858, 878; *Boschma v. Home Loan Center, Inc.* (2011) 198 Cal.App.4th 230, 248.) General and conclusory allegations do not suffice. (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645). The requirement of specificity, however, is relaxed when the allegations indicate the defendant must necessarily possess full information concerning the facts of the controversy. (*Tarmann v. State Farm* (1991) 2 Cal.App.4th 153, 158.) When asserting fraud against a corporate entity, plaintiff must allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written. (*Hamilton v. Greenwich Investors XXVI, LLC* (2011) 195 Cal.App.4th 1602, 1614.)

Plaintiff's proposed amendment alleges “[a]t all times relevant hereto, defendants, through their employees, agents, business manager(s), front-desk personnel, and managing agents, were aware of the existence of bed bugs in the Subject Property and the Hotel Room, and possessed superior and exclusive knowledge of the facts concerning prior bed bug activity, inspections, and treatments at the hotel.” (Demirdjian Decl., Ex. A, ¶ 91.)

She describes the facts regarding the 2022 through July 2023 pest control records (as detailed above). She alleges when she checked in on October 13, 2023, and was assigned room 103, defendant, “through the front-desk employee(s) and/or manager(s) then on duty, acted with Defendant's authority to assign rooms, accept payment, and communicate room status to guests,

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and failed to disclose the foregoing material facts” to her. She alleges that by assigning room 103, taking her payment, and permitting her to occupy the room without disclosing the hotel’s prior bed bug treatment and inspection history, defendant conveyed that room 103 was fit and safe for occupancy, while suppressing material facts that materially affected the transaction. She claims defendant had a duty to disclose these facts because it had exclusive knowledge of material facts not known or reasonably accessible to her and that it actively concealed those facts, and made representations of room 103’s habitability by renting it as a suitable guest room while omitting its known bed bug history. She goes on to allege relatively conclusory facts as to her placing her trust in defendant to rent a habitable room, that she could not have known or discovered the infestation that was known to defendant, that defendant’s unnamed managing agents intentionally concealed the infestation and prior history of bed bugs with the intent to induce her to rent the infested room, and general facts related to defendant’s causing her harm, which included severe physical and presently ongoing emotional injuries, including painful bites, infection, scarring, anxiety, sleeplessness, humiliation, and other damages according to proof. She asserts unnamed officers or managing agents ratified the conduct with a conscious disregard for the Plaintiff’s rights and with the intent, design and malicious purpose of injuring the Plaintiff. (Demirdjian Decl., Ex. A, ¶¶ 92-101.)

These allegations remain problematic. The proposed amendment continues to allege general conclusions that the hotel and essentially all its employees were aware of the bed bug infestation in plaintiff’s room and hid this fact. All that the new pest control evidence establishes is that someone at the hotel, unidentified by plaintiff, knew an infestation had occurred in room 103 three months prior. The evidence does not meet the pleading standard for fraud – plaintiff fails to specify the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written. This evidence also does not support that any hotel employee actively concealed the prior infestation with the intent to harm plaintiff.

For these reasons, the Court denies plaintiff’s motion as to any newly alleged fraudulent concealment claim.

C. Punitive damages

“Malice is defined in the statute as conduct intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (*College Hospital, Inc.*, *supra*, 8 Cal.4th at 725.) “As amended to include [despicable], the statute plainly indicates that absent an intent to injure the plaintiff, ‘malice’ requires more than a ‘willful and conscious’ disregard of the plaintiffs’ interests. The additional component of ‘despicable conduct’ must be found.” (*Ibid.*) The statute’s reference to despicable conduct represents a “new substantive limitation on

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punitive damage awards.” (*Ibid.*) Despicable conduct is “conduct which is so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people. Such conduct has been described as ‘having the character of outrage frequently associated with crime.’” (*Tomaselli v. Transamerica Ins. Co.* (1994) 25 Cal.App.4th 1269, 1287.)

“The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. [Citation.] Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim. [Citation.]” (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166.)

Plaintiff’s proposed amendment does not cure the defects of her previous complaints. Despite including the pest control services for her room three months before, and other rooms before that, she fails to offer specific factual details describing how she discovered the alleged infestation, what hotel staff said when she complained, what the circumstances were surrounding her departure, or what any identified corporate actor knew at the time of check-in. As noted above, plaintiff’s allegations are insufficient as to IIED or fraud, which are the only claims that could support any punitive damages. She also has not pled that any officer, director, or managing agent had knowledge that the hotel remained infested on October 13, 2023.

Therefore, the Court does not find that plaintiff can state any new allegations to support punitive damages.

No. 24CV02263 -- UPDATED FROM PRIOR POSTING OF MAY 29, 2026

WOODS v. PACIFIC BELL, et al.

MOTION TO SET ASIDE DISMISSAL

The motion is denied, as discussed below.

I. BACKGROUND

Plaintiff Woods (“Woods” or “plaintiff”) contends that a bridge on his property was significantly damaged by an AT&T van that came to perform an installation on his property. Woods hired attorney Saunders to prosecute his claim against defendants, including AT&T. (Decl. of Woods at ¶ 13.) Defendants successfully demurred to the complaint, but plaintiff was granted leave to amend. Saunders allegedly never told Woods about the demurrer or that he needed to file an amended complaint. (Decl. of Woods at ¶ 16.) Woods did not file a timely amended pleading. (Decl. of Woods at ¶ 16.) The case was then dismissed by the Court after

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defendants applied ex parte for a dismissal. Woods, by now self-represented, filed a Code of Civil Procedure section 473, subdivision (b) motion (“section 473(b) motion”) which was denied by this Court.

- 08/09/24 Woods through counsel filed a verified complaint against defendants because of damage allegedly caused by an AT&T van to a bridge on his property.
- 12/19/24 Court sustained, with leave to amend, defendants’ demurrer to the complaint. Woods filed an opposition which was 4 days late. Woods was given 30 days from the date of the hearing to file an amended complaint.
- 02/04/25 Defendants filed an ex parte application for dismissal because Woods failed to file an amended complaint. Woods, through his counsel, filed an opposition and included a proposed first amended complaint.
- 02/06/25 Counsel for both plaintiff and defendant appeared remotely at the hearing and presented argument. The Court granted defendants’ motion to dismiss.
- 06/23/25 Notice of entry of judgment filed, including \$2,050.87 in costs.
- 06/26/25 Woods learns his case was dismissed at a county planning hearing. (Decl. of Woods at ¶ 25.)
- 08/08/25 Woods files a substitution of attorney and is now self-represented.
- 08/13/25 Woods files a motion to vacate demurrer and dismissal pursuant to Code of Civil Procedure section 473, subdivision (b) based upon neglect of his prior attorney.
- 10/14/25 Court denies Woods’s motion to vacate demurrer and dismissal, finding he did not establish mistake, inadvertence or excusable neglect, that the motion was filed beyond the jurisdictional 6-month period, and did not include a proposed amended complaint.
- 04/14/26 Woods files a substitution of attorney and is now represented by counsel who filed this motion to set aside and vacate the dismissal of complaint based upon extrinsic fraud and mistake of Wood’s former counsel.

II. PLAINTIFF’S MOTION TO SET ASIDE DISMISSAL

Woods asserts through new counsel that the court should set aside the dismissal on the grounds of extrinsic fraud and mistake contending that his former counsel’s “conduct constituted a total failure of representation, effectively obliterating the attorney-client relationship” (MPA at p. 14.) Woods alleges Sauders failed to inform him of court orders, failed to file a first

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amended complaint, failed to inform him his lawsuit had been dismissed until 13 days before the 180-day statutory deadline to file a motion for relief, failed to file a motion for relief, and failed to timely file a substitution of attorney so that Woods could seek relief from default in pro per. Woods attaches a proposed first amended complaint which alleges a single cause of action for negligence against AT&T; plaintiff dismissed all remaining defendants.

Woods asserts that he is now seeking relief independent of a section 473(b) motion. Woods argues his earlier section 473(b) motion appears to have been denied primarily on procedural grounds and that neither Woods nor Saunders were present at this hearing. Woods argues that this claim against AT&T for negligence is meritorious.

In opposition, defendants argue that there are no exceptional circumstances here which warrant setting aside the dismissal that was entered by the court. Defendants contend that plaintiff was represented by counsel at the time the case was dismissed, that the underlying negligence case lacks merit, and that plaintiff was not diligent in attempting to revive the case after his section 473(b) motion was denied. Defendants assert that contrary to his contention, Woods did appear at the section 473(b) motion hearing.

Defendants maintain there is a stringent, three-part test which applies when a party seeks to have a dismissal or default set aside based upon extrinsic fraud or mistake: (1) meritorious case; (2) satisfactory excuse, and (3) that plaintiff demonstrated diligence in seeking to correct the mistake resulting in the dismissal once discovered. Defendants argue that Woods had not been abandoned by his attorney at the time the dismissal was entered on an ex parte basis and that counsel appeared on his behalf and filed an opposition. (Opp. at p. 7.) Defendants acknowledge this may be “bad lawyering” but is not positive misconduct – there was not a total failure of representation. Defendants insist that Woods did not act with diligence in filing this motion – he waited more than six months after the denial of his section 473(b) motion.

In reply, Woods argues that the motion is “framed as one for relief from *extrinsic mistake* – the doctrine California courts apply when a party is deprived of a hearing on the merits by his own attorney’s positive misconduct.” (Reply at p. 1.) Woods contends his delay was explained and he provides a supplemental declaration where he states between October 2025 and April 2026 he interviewed at least 12 different law firms before settling on his current counsel. Woods asserts he was cautious in seeking new counsel given his past dealing with Saunders. Once he retained counsel, it was only a week before this motion was filed.¹

¹ Defendants filed an objection to Woods’ supplemental declaration, arguing that it constituted pre-existing evidence that could have been provided in support of his moving papers. Although in general, new evidence is not properly admitted through reply papers, the Court in its discretion

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At the initial hearing on this motion, plaintiff's counsel informed the Court that she had filed a declaration from Mr. Saunders. Because the declaration was not timely filed, the Court was unable to review it before the hearing. As a result, the Court continued the hearing on this motion to allow time for the Court to review the declaration, over objection from the defense. Defendants were permitted to file a response or reply to the declaration, which they did, on or before June 5, 2026.

III. DISCUSSION

"Apart from any statutory authority, a court has inherent, equitable power to set aside a judgment on the grounds of extrinsic fraud or mistake. [Citations.] There are three essential requirements to obtain relief. The party in default must show: a meritorious defense [claim], a satisfactory excuse for not presenting a defense to the original action; and diligence in seeking to set aside the default once it is discovered." (Weil & Brown *Civil Proc. Before Trial* (TRG 2025) § 5:435.) Equitable relief is only available with extrinsic fraud or mistake— "meaning the party was denied the opportunity to be heard." (*Id.* at § 5:439.)

"The usual case in which 'extrinsic' fraud is found is where a party **was not represented by counsel**. If the defendant [party] had a lawyer and the opportunity to litigate, any fraud or mistake will usually be classified as 'intrinsic' (hence, not a ground for equitable relief). [Citation.] The result is otherwise where the attorney has *totally* failed to represent the client. Such 'positive misconduct' may be ground for equitable relief from the judgment. [Citations]." (Weil & Brown *Civil Proc. Before Trial* (TRG 2025) § 5.440.) (Emphasis added.) "As a general rule, however, the negligence of an attorney is imputed to the client. [Citation.]" (*Seacall Dev. v. Santa Monica Rent Control Board* (1999) 73 Cal.App.4th 201, 205.)

"For attorney misconduct to support equitable relief from a default judgment due to extrinsic mistake, there must have been 'neglect of an extreme degree amounting to positive misconduct' by counsel, rather than mere inexcusable neglect, sufficient to obliterate the attorney-client relationship and thereby preclude any imputation of counsel's neglect to the client. [Citation.] 'Positive misconduct is found where there is a total failure on the part of counsel to represent his client.'" (*People v. One Parcel of Land* (1991) 235 Cal.App.3d 579, 584.) "'Positive misconduct' is narrowly construed. It will be found only where there is a *total failure* on the part of counsel to represent the client, amounting to a 'de facto severance of the attorney-client relationship.' [Citation.]" (Weil & Brown *Civil Proc. Before Trial* (TRG 2025) § 5:355.)

reviewed and considered Woods's supplemental declaration. Therefore, defendants' objection is overruled.

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“Imputation of the attorney's neglect to the client ceases at the point where ‘abandonment of the client appears.’ [Citation.] What constitutes ‘abandonment’ of the client depends on the facts in the particular action. Even where abandonment is shown, however, the courts also consider equitable factors in deciding whether the dismissal of an action should be set aside. These factors include the client's own conduct in pursuing and following up the case. [Citation.]” (*Secall, supra*, 73 Cal.App.4th at p. 205.)

Here, Saunders, while representing Woods, filed a complaint and filed an opposition to the demurrer, though it was late. He did not timely file a first amended complaint. Counsel for plaintiffs and defendants appeared at the hearing on the demurrer December 9, 2024, though neither formally opposed the tentative ruling. The hearing on defendants’ motion to dismiss occurred on February 6, 2025. Plaintiff filed an opposition to the motion and included a proposed first amended complaint. Counsel for plaintiff specially appeared as did counsel for defendants. The Court provided an opportunity for plaintiff’s counsel to be heard and then granted the motion to dismiss. Eventually, with Woods’s prompting, Saunders substituted out of the case on August 8, 2025. Woods then filed a 473(b) motion on his own behalf on August 13, 2025. At the hearing on September 29, 2025, the parties appeared remotely. According to the minute order, Woods requested and presented oral argument even though he had not contested the Court’s tentative ruling. The Court then adopted the tentative ruling, denying the motion to set aside the demurrer and dismissal. On April 14, 2026, plaintiff’s new counsel substituted into the case and filed this motion on the same day.

In his June 1 declaration, Saunders states that he is currently suspended from the practice of law for two and a half years. Mr. Saunders outlines that while he filed an opposition to the demurrer, it was filed only 5 court days before the hearing, that he did not personally appear at the hearing but sent an appearance attorney who was given a copy of the complaint and opposition to the demurrer, and that he failed to file an amended complaint within 30 days. (Decl. of Saunders at ¶¶ 1-10.) Mr. Saunders states that he did file an opposition to the ex parte request for dismissal but did not provide a substantive explanation for why he had not done so though he did attach a proposed first amended complaint and requested that the Court allow the filing of this pleading. He asserts he failed to tell Woods that the case was dismissed with prejudice and that he did not tell Woods he would may be entitled to mandatory relief from dismissal. (Decl. of Saunders at ¶ 11-12, 18.) Saunders asserts that his one-day “delay in executing the Substitution prevented Mr. Woods from filing a motion for relief within the statutory period.” (Decl. of Saunders at ¶ 19.) Saunders declares that “[t]he dismissal of Mr. Woods’s case was the direct and foreseeable result of my failure to communicate with him, my failure to file an amended complaint as ordered by the Court, and my conduct in the litigation as described above:” (Decl. of Saunders at ¶ 28.)

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Defendants filed a sur-reply, arguing that the Saunders's declaration does not add any new information. Defendants contend that a careful reading of the declaration does not show positive misconduct rising to the level of client abandonment. Defendants point out that Woods had actual notice that the case was dismissed and waited six and a half months because he was vetting new counsel.

The evidence does not demonstrate a total failure of representation on behalf of Woods such that there is a finding of positive misconduct. Woods complains of Saunders's continual failure to communicate with him, which Saunders corroborated in his declaration. While unsuccessful, counsel did oppose the ex parte request for dismissal, appeared at the hearing and offered argument. Emails attached to Mr. Woods's declaration also show that he had serious concerns with his representation by the Saunders firm dating back to July 2023, nearly two years before the case was dismissed and before the complaint was filed. "[W]hen I start digging into your personal profile and the law firm's history, I am suddenly drowning in red flags." Woods writes, on July 10, 2023 to an attorney at Saunders's office that "I was forced to do some background research, and I was not happy with what I found when I dug deeper." (See, Decl. of Woods, Ex. E.)

In addition to not establishing the required "extrinsic fraud" the Court notes the other three stringent requirements to obtain relief. In particular, the Court looks to the diligence in seeking to set aside the dismissal— from September 29, 2025 to April 14, 2026 or 6 months and 16 days. Woods asserts the delay was because he was carefully interviewing potential new counsel. Woods, as of August 8, 2025, knew he was proceeding without counsel and that potential deadlines and remedies may not be known to him, as a self-represented litigant. However, by April 14, 2026, when new counsel finally came aboard, Woods had been self-represented for 8 months and 6 days. "Beyond the 6-month period in which relief can be obtained under CCP §473(b), 'there is a strong public policy in favor of the finality of judgments and only in *exceptional circumstances* should relief be granted.' [Citation.]" (Weil & Brown *Civil Proc. Before Trial* (TRG 2025) §5:436.1.) The Court does not find exceptional circumstances. The Saunders declaration confirms plaintiff's position, already explained in his initial moving papers, but does not add any new theories to establish relief or why plaintiff waited over 6 months to file this motion.

Second, the merits of the negligence claim, as alleged, are questionable. Plaintiff asserts, in the proposed amended complaint, that in order to access the property, "one **must** traverse a wooden bridge that spans a protected creek." (Proposed First Amended Complaint "PFAC" at ¶ 7.) (Emphasis added.) Plaintiff placed an order for AT&T internet service; AT&T dispatched a technician in a van to plaintiff's property. (PFAC at ¶¶ 9-11.) The PFAC alleged that "[r]ather than contact Plaintiff for instructions on how to traverse the bridge, Plaintiff is informed and

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believes that AT&T's technician chose to ignore the 'Restricted Area Do Not Enter' signs and attempted to traverse the bridge." (PFAC at ¶ 11.) As the van drove across the bridge, it crashed the bridge deck because the van did not travel over the runner plank path. Plaintiff alleges the bridge cannot be restored to its original state and plaintiff will be forced to build a costly bridge which complies with the latest County building standards. Plaintiff hired AT&T to install service to his property and was presumably aware that a technician would be required to be onsite. The PFAC states that the only route into the property is over a bridge. The PFAC does not provide authority for the proposition that an individual invited onto the premises has a duty to contact the landowner before entry, to obtain instruction on how to safely traverse a bridge, which is the only access point to the property.

Despite the dismissal of the case, in light of the allegations raised against Saunders and his confirmation of the same, the Court again notes that Woods is not without alternate recourse.

PLAINTIFF'S REQUEST FOR JUDICIAL NOTICE

- 1-10. The request for notice of these documents is denied because they are already part of the Court's own file.
11. State Bar of California Attorney Profile for Gary Scott Saunders: Granted.
12. State Bar of California Decision re: Case Nos. SBC-20-O-30011 and SBC-20-O30276-MC against Gary Scott Saunders filed November 19, 2020: Granted.
13. Notice of Disciplinary charges, Case no. SBC-24-O-30924 filed on December 18, 2024, by the State Bar against Gary Scott Saunders: Granted.
14. Notice of Disciplinary Charges, Case no. SBC-25-O-30290 filed on March 19, 2025, by the State Bar against Gary Scott Saunders: Granted.
15. Notice of Disciplinary Charges, Case no. SBC0-26-O-30027 filed on January 20, 2026, by the State Bar against Gary Scott Saunders: Granted.